

**JOHN A. VOS, TRUSTEE OF THE VOS FAMILY TRUST DATED
8/31/2011, ET AL. V. KRISTAN E. EVANS, ET AL.**

23CV46959

**MOTION FOR INTERLOCUTORY
JUDGMENT OF PARTITION AND
APPOINTMENT OF REFEREE**

This action seeks partition of the real property located at 10777 Walker Trail, Lost City, CA 95222, Calaveras County Assessor's Parcel Numbers 050-008-053-000, 050-021-018-000, 050-007-008-000, 050-007-009-000, 050-007-010-000, 050-007-011-000 (the "Property").

This motion seeks to resolve a co-ownership dispute by appointing referee Matthew L. Taylor, Esq. as referee to market and partition the Property.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Based on the foregoing, the motion is **DENIED** without prejudice to renew the motion complying with Rule 3.3.7. after the court rules on Defendants' Motion to Set-Aside Default.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

PAUL v. DHALIWAL

23CV46672

PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS and MOTION TO COMPEL SPECIAL INTERROGATORIES

Plaintiff, on her own behalf and behalf of all other Subway employees, filed the Class Action Complaint for failure to pay minimum wages, provide rest and lunch periods, maintain accurate wage statements, pay wages upon termination, reimburse expenses, theft, conversion, unfair employment competition, and Private Attorney General Action ("PAGA"). Plaintiff served discovery and is now moving to compel further responses.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Based on the foregoing, the motion is **DENIED** without prejudice to renew the motion complying with Rule 3.3.7.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.